

Answer to Petition for Writ of Mandamus

United States Court of Appeals for the Fourth Circuit

In re Cinder Lake Health Network, Inc., Petitioner

Related district action: *Rhea Calder v. Cinder Lake Health Network, Inc.*

Docket: SYN-CA4-26-WR-4401

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Answer and requested denial

Calder asks the court to deny extraordinary relief or, at most, confine any correction to the specific protected documents.

Calder maintains that the demanding writ standard is not met and asks the panel to avoid turning a disputed discovery ruling into routine interlocutory review. Her alternative position recognizes that, if correction is necessary, the remedy should be limited. The answer does not ask the appellate court to decide whether Calder proved retaliation.

Mandamus standard

Cheney v. U.S. District Court, 542 U.S. 367, 380–81 (2004), requires no other adequate means, a clear and indisputable right, and appropriateness under the circumstances; disagreement with a discovery ruling is not enough.

The three Cheney requirements are cumulative and discretionary. Calder argues that Cinder Lake must show more than serious consequences or plausible legal error. The answer separately addresses adequacy, clarity, and appropriateness so a weakness in one element is not concealed by repetition of the April 1 deadline.

Adequate-means position

Calder relies on ordinary review and protective-order remedies. Ashe already holds protected review copies of the complete memorandum and log, but the twenty underlying logged items and attachments would be delivered for the first time before final judgment.

Calder contends the district protective regime that governed Ashe's January 29 and February 5 review copies can also govern the source items, invoking *Mohawk Industries, Inc. v. Carpenter*, 558 U.S. 100, 108–11 (2009). *Cinder Lake* distinguishes review copies from first compelled delivery of underlying communications, drafts, work product, and attachments. The dispute concerns whether that new knowledge can later be undone.

August 21 letter

The answer emphasizes that Cinder Lake invoked outside counsel's review and announced remediation to a federal oversight office.

The oversight communication used counsel's involvement to explain why Cinder Lake considered its response credible. Calder argues that this affirmative reference matters to fairness. The page quotes the public language accurately and does not add sealed details, allowing the panel to decide whether the disclosed act and result reveal protected information. The answer therefore presents context as Calder's inference, not as a newly discovered quotation from the protected memorandum.

Disputed disclosure

Calder argues that this public use supports waiver, but she identifies no verbatim advice or confidential employee communication in the letter.

The answer's waiver theory depends on treating the letter's general assertions as an intentional use of counsel's work. Cinder Lake responds that use of an investigation's existence is not disclosure of a communication. Because the answer supplies no advice or interview content from the letter, the legal consequence of that absence remains central.

Rule 502(a) fairness

Calder contends fairness permits related discovery because Cinder Lake used the review to reassure the oversight office.

Calder says a party should not invoke a legal review publicly and then withhold all material bearing on the same subject. Rule 502(a), however, still requires disclosed privileged information and subject relation plus fairness. The answer asks the panel to infer the first step from context; it does not argue that shared subject matter alone replaces the rule's text.

Sky Angel and actual content

The answer agrees that actual disclosure matters and argues the district court could infer content from the letter's wording and context.

Sky Angel U.S., LLC v. Discovery Communications, LLC, 885 F.3d 271, 276–77 (4th Cir. 2018), directs attention to what was actually revealed, and Calder reads the letter’s wording and circumstances together. She asks the panel to consider the federal oversight audience and remedial announcement as meaningful context. The question is whether that context conveys protected content rather than merely suggesting counsel participated.

Hawkins and burden

Cinder Lake bears the burden to establish privilege for each item; Calder argues the existing log was too categorical for efficient review.

Hawkins v. Stables, 148 F.3d 379, 383–85 (4th Cir. 1998), places the privilege burden on Cinder Lake, which must support individual claims with adequate information. Calder criticizes broad log descriptions but does not contend that a deficient description automatically waives every communication; the appropriate consequence can include supplementation, in camera review, or an entry-specific ruling.

Rule 502(d) timing

The January 9 order governs litigation disclosures and does not retroactively erase or create waiver from the August 21 communication.

The answer agrees the January 9 order cannot travel backward in time. Its relevance lies in later discovery handling and Cinder Lake's ability to seek clawback or controlled use. That agreement narrows the case: neither side can use Rule 502(d) to avoid deciding what the August 21 letter itself communicated.

Fluor limitation

In re Fluor Intercontinental, Inc., No. 20-1241, 2020 WL 1472076 (4th Cir. Mar. 25, 2020) (unpublished), is nonprecedential. Calder argues its distinct record should not establish an automatic writ rule for every short production deadline.

Calder correctly labels Fluor unpublished and nonprecedential and distinguishes its procedural record. She argues that the panel should apply binding Cheney and Mohawk principles without creating a categorical exception for seven-day orders. The Court may consider Fluor's factual reasoning persuasively, but the answer insists it cannot dictate the result.

Rule 26 facts and communications

Calder seeks employee knowledge, billing records, chronology, and remedial facts regardless of the privilege treatment of counsel communications.

Upjohn Co. v. United States, 449 U.S. 383, 389–97 (1981), leaves employees available as witnesses and business data discoverable from its sources despite counsel's review. Calder proposes depositions, record requests, and questions about actual remediation. Those preserved avenues support denial of any blanket writ even if the panel protects confidential exchanges and counsel's work product or narrows the complete-production order.

Seven-day order

Calder defends expedition but accepts that the panel may preserve confidentiality long enough for review.

Calder defends the district court's need to resolve an active discovery dispute promptly, but she does not identify why seven days was necessary for every category. She argues that appellate protection has now removed urgency and that any remand should permit the district court to set a new schedule after individual review. The panel can separate the need for a workable schedule from the legal defect alleged in categorical production.

Remedy if error

Any relief should vacate only the categorical-waiver and complete-production provisions and remand for item-specific decisions.

If the court finds the categorical reasoning defective, Calder proposes vacatur of those paragraphs rather than an appellate declaration about each listed document. The district court can demand a better log, examine disputed material, and distinguish facts from communications. That remedy protects appellate limits while permitting Calder to contest particular claims. Calder's alternative also avoids using mandamus to perform the district court's document-by-document task at the outset.

No blanket discovery bar

The answer opposes Cinder Lake's broader request insofar as it could stop otherwise lawful related discovery.

Cinder Lake's request extends beyond vacating complete production insofar as it seeks protection from related discovery generally. Calder opposes that portion because topic overlap cannot immunize nonprivileged sources. The answer therefore gives the panel a principled way to grant only part of the petition and leave the underlying civil discovery process functional. Partial relief can correct the challenged command without endorsing Cinder Lake's broadest request.

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